

4. **Even to a yearly tenant.**—Even where a testator was possessed of leaseholds, and devised all his interest therein to A. for life, remainder to B., and the lease having expired in the testator's lifetime, he was at his * death [*182] a mere yearly tenant, it was held that A. having renewed the lease, must hold it upon the limitations of the will, for the yearly tenancy was an interest capable of transmission by devise; and the tenant for life could not, by acting on the good-will that accompanied the possession, get the exclusive benefit of a more durable term (*a*).

[So if the legal personal representative of a tenant from year to year of lands in Ireland, procure by reason of any tenant right custom, a renewal of the tenancy or a regrant to himself, he will take the lands impressed with a trust for the benefit of the estate of the deceased tenant (*b*).]

5. **Case of tenant at will, or at sufferance.**—But if a testator be merely *tenant at will*, or *at sufferance*, then, if the executor renew, he is not a trustee for the devisees, for as there was no interest upon which the will could operate, there was in fact no devise (*c*). And so, where a testator possessed leaseholds for years and was in possession of other lands without title under the mistaken impression that they were contained in the lease, and devised the lands he held upon lease to A., his executrix, for life, with remainder over, and A. obtained a lease of the lands not passed by the will, it was ruled that no trust attached upon the term in favour of the remainderman (*d*). But although the *devisees* cannot claim in these cases, the executor himself will not be allowed to keep the beneficial interest; but it will be an accretion to the general estate (*e*).

6. **Agent of trustee cannot renew for his own benefit.**—Neither can an agent (*f*), or other person acting under the

(*a*) *James v. Dean*, 11 Ves. 383; S. C. 15 Ves. 236; *Re Tottenham*, 16 Ir. Ch. Rep. 118.

[(*b*) *M'Cracken v. M'Clelland*, 11 I. R. Eq. 172; *Kelly v. Kelly*, 8 I. R. Eq. 403.]

(*c*) See *James v. Dean*, 11 Ves. 391, 392.

(*d*) *Rawe v. Chichester*, Amb. 715.

(*e*) *James v. Dean*, 11 Ves. 392, per Lord Eldon. In *Rawe v. Chichester*, *ubi supra*, the executrix was also residuary legatee.

(*f*) *Griffin v. Griffin*, 1 Sch. & Lef. 353; and see *Edwards v. Lewis*,